

Access to Information on the Environment (AIE) in Ireland

A Practical Requester Manual for Evidence Traceability and Action

Beyond submitting a request: how to decide what to ask, obtain useful forms of environmental information, interpret the response, preserve the evidence trail, and decide what to do next

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Scope. This is a practical research and civic-participation manual, not legal advice. The analytical concepts 'evidence traceability', 'reflexive effect' and 'baseline-and-remediation paradox' are terms used in this manual; they are not statutory terms or formal OCEI doctrines.

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Abstract

Access to Information on the Environment (AIE) is a distinct legal route for obtaining environmental information held by, or for, public authorities in Ireland. Authoritative Irish and international guidance already explains the legal framework and the mechanics of making and processing AIE requests. This manual does not seek to replace those sources. Its purpose is requester-centred: to help a person decide what environmental information would actually be useful, choose AIE or FOI, identify the correct authority or shared-service route, ask for analytically useful forms, interpret what a response means, preserve a dated evidence trail and decide what to do next.

The manual develops a practical evidence-traceability model. An AIE request can establish a dated baseline of an authority's stated information position. That baseline should not be confused with proof that an assessment never occurred. Internal review may locate pre-existing material, confirm absence after adequate searches, clarify third-party holdings, or improve the authority's own search and record organisation. The manual therefore treats internal review as both a statutory right and a strategic choice, while noting that internal review is normally required before an appeal to the Commissioner for Environmental Information (OCEI). It distinguishes information located later from information created later and emphasises provenance, timing and the decision stage that information actually informed.

A further contribution is a role-to-action framework showing how landowners, tenants, residents, farmers, river groups, biodiversity and heritage groups, businesses, researchers, journalists, community organisations and elected representatives can use information obtained, or the documented absence of information, in consultation, technical analysis, community coordination, research, representation and, where appropriate, professional or legal advice. The manual also addresses shared services and project offices whose public-facing identity may differ from the legal public authority holding the information, and includes an appendix of documented Irish AIE cases illustrating how timely access can strengthen the conditions for better environmental decision-making. The manual is designed to function both as a stand-alone field guide and as the specification for a future digital AIE/FOI decision-support tool.

Keywords: AIE; Access to Information on the Environment; FOI; Aarhus Convention; environmental information; evidence traceability; provenance; public participation; transparency; Ireland

Source hierarchy and reference discipline

Source type	How this manual uses it
Irish/EU legislation	Primary authority for legal rights, scope, deadlines, formats, exceptions and review structure.
OCEI/OIC/FOI official guidance and decisions	Primary operational sources for current procedure and authoritative administrative interpretation in Ireland.
Peer-reviewed academic literature	Supports the governance, transparency, participation and strategic-analysis discussion; it is not treated as Irish legal authority.
Author-generated analytical framework	Used to organise practice: evidence traceability, reflexive effect, baseline-and-remediation paradox and role-to-action pathways. These are clearly labelled as analytical tools.
Earlier Irish requester guides	Acknowledged as practical predecessors (TASC; Noteworthy). Used for historical/practical comparison, but current official sources control where guidance has evolved.

Reference assurance. Academic source metadata and DOIs listed in the references were cross-checked against publisher or institutional records. Current procedural claims were checked against official Irish and EU sources.

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Abbreviations

AIE	Access to Information on the Environment
FOI	Freedom of Information
OCEI	Office of the Commissioner for Environmental Information
OIC	Office of the Information Commissioner
DPC	Data Protection Commission
GIS	Geographic Information System
EU	European Union
UNECE	United Nations Economic Commission for Europe

How to use this manual. Start with Quick start if you have a live issue. Use Sections 2-7 to design or decode a request, Sections 8-11 to preserve chronology and decide on review, Section 12 for role-specific use of the outcome, and Sections 13-17 for publication, worked scenarios, checklist and digital implementation.

Why another AIE manual?

The basic mechanics of AIE can already be obtained more directly from authoritative sources. The Department of Climate, Energy and the Environment maintains the national AIE portal, legislation, Ministerial guidance and request flowchart. OCEI publishes requester guidance, decisions and an authority-facing guide to handling AIE requests. UNECE provides the broader Aarhus Convention Implementation Guide. Earlier Irish citizen-facing resources, notably TASC's Open Government Toolkit and Noteworthy's 2020 citizen guide, also explain how to frame and submit requests (Department of Climate, Energy and the Environment, 2026; OCEI, 2023c; TASC, n.d.; Sargent, 2020; UNECE, 2014).

If you only need to lodge an AIE request. Start with the current Department and OCEI guidance. This manual is for the harder questions: what should I ask for, what does the answer actually establish, what should I preserve, should I review the decision, and what can I do with the result?

What this manual adds

Existing guidance usually answers	This manual adds
How to submit a valid request	How to turn a real-world environmental concern or requester role into a proportionate information need.
What environmental information is	How to select useful information forms: GIS, raw data, methods, models, metadata, assumptions and decision-trace material.
Which procedural deadlines apply	How to preserve the initial decision as a dated evidential baseline.
How a public authority should search	How a requester can interpret not held / not found / does not exist / not yet created / held elsewhere without overclaiming.
How to seek internal review or appeal	How to decide whether review is strategically useful while preserving the chronology.
What disclosure rights exist	What information obtained, or not obtained, can support for a landowner, resident, farmer, river group, researcher, journalist, councillor or other requester.
General access principles	A provenance workflow linking request date, creation date, version, disclosure date, project stage and the decision the information actually informed.

Read older practical guides with current law beside them

Older citizen guides remain useful, but terminology and procedure evolve. For example, Noteworthy's 2020 guide advised requesters to ask for existing "records" rather than questions. Current OCEI decisions emphasise that AIE is a right to environmental information, not access to records per se, and confirm that a request may be framed as a question where it seeks specified environmental information already held. The authority is not required to create new explanations or enter an open-ended question-and-answer process (OCEI, 2024b). Where older practical guidance conflicts with current legislation, case law or OCEI decisions, the current primary/official source should control.

Positioning of this manual. Use official sources for the law. Use this manual as the requester-side reasoning layer between the legal right and the practical environmental decision you are trying to understand or influence.

Quick start: the seven-step requester workflow

Before requesting. Check the authority's website, disclosure log, data portals and the current Department/OCEI guidance. Use AIE when the information you need is not already readily accessible or when you need a formal, reviewable access route.		
Step	Do this	What you preserve or produce
1. Define the environmental question	State the issue in one sentence: what do you need to know about a place, activity, plan, project, emission, habitat, risk or environmental decision?	A precise purpose
2. Choose AIE or FOI	Use AIE for environmental information held by or for a public authority; use FOI for broader official records, personal records or non-environmental administration. Split mixed requests where useful.	Correct legal route
3. Scope the request	Limit by place, date range, project stage and information category. Ask for underlying information, not only a document title that may not exist.	A focused request
4. Ask for useful existing forms	Where relevant, request searchable PDF, spreadsheet, native GIS, georeferenced mapping, model data, monitoring results, metadata or methods.	Usable evidence
5. Preserve the baseline	Save the sent request, acknowledgement, initial decision, schedule, released files and exact refusal wording.	Dated evidence snapshot
6. Review strategically	If access is inadequate, consider internal review. Preserve the original decision before escalating; internal review is normally a prerequisite for OCEI appeal.	Review record + chronology
7. Act with provenance	Record creation dates, versions, source and the decision stage each item informed. Use the result in the forum appropriate to your role.	Traceable evidence and next action

Fast rule. Do not begin by asking for 'everything'. Begin with the environmental question, then ask for the smallest coherent body of existing information capable of answering it.

1. Why AIE exists

AIE implements the access-to-information pillar of the Aarhus environmental-democracy framework. Directive 2003/4/EC requires Member States to make environmental information held by or for public authorities available to applicants without requiring them to state an interest. Ireland implements that obligation through the European Communities (Access to Information on the Environment) Regulations 2007 to 2018 (Directive 2003/4/EC, arts. 2-3; European Communities (Access to Information on the Environment) Regulations 2007, arts. 3, 6-7).

The legal right matters because environmental participation is information-dependent. Research on Aarhus implementation connects access to information with transparency and accountable regulatory processes, while also showing that formal rights do not automatically remove practical obstacles around information provision, interaction and trust (Mason, 2010; Osae et al., 2024). Public participation scholarship similarly emphasises that the practical value of participation depends on how information and participation rights are implemented in real decision processes (Hartley & Wood, 2005; Abbot & Lee, 2024).

What AIE is not. AIE is not a mechanism for deciding whether a road, wind farm, quarry, flood scheme, forestry operation, housing development or other underlying activity should proceed. It is an information-access regime. The information obtained may then matter in consultation, statutory decision-making, regulation, research or legal advice.

1.1 The requester does not need to prove standing

An AIE applicant may be a natural or legal person. The applicant is not required to state an interest in making the request (Directive 2003/4/EC, art. 3(1); AIE Regulations, art. 6(2)). A landowner therefore does not obtain a stronger AIE right merely through ownership, and a researcher does not need an academic affiliation. Role matters operationally because it changes which information is useful, not because it changes the basic entitlement.

1.2 Public authorities also have information-management duties

The Irish Regulations require public authorities to make reasonable efforts to maintain environmental information held by or for them in forms that are readily reproducible and accessible by electronic means. The Directive also promotes active and systematic dissemination of environmental information (AIE Regulations, art. 5; Directive 2003/4/EC, art. 7). These provisions help explain why AIE is concerned not only with individual disclosure but with the wider information architecture of environmental governance.

2. AIE or FOI? Choose the route before drafting

AIE and FOI can overlap, but they are legally distinct. AIE is information-centred and environmentally bounded. FOI is principally a records-access regime applying to FOI bodies under the Freedom of Information Act 2014. Some projects justify separate, focused requests under both systems.

Feature	AIE	FOI	Requester implication
Core object	Environmental information	Records held or deemed held by FOI bodies	Choose by substance, not by the document label.
Interest/reason	No interest need be stated	Reasons are generally disregarded in deciding access	Do not over-explain your motives.
Initial application fee	No application fee	No application fee	Supply/search charges may still arise in defined circumstances.
Typical initial deadline	1 month; may extend to 2 months for volume/complexity	4 weeks; statutory extension may apply	Calendar the due date immediately.
Internal review	Request within 1 month; no fee; same/higher-rank unconnected reviewer	Usually within 4 weeks; generally €30 / €10; 3-week decision target	Different clocks and fees matter.
External review	OCEI; normally after internal review; €50 / €15; generally within 1 month	Office of the Information Commissioner; generally after internal review; €50 / €15; normally within 6 months	Do not mix appeal routes.
Third-party / service-provider issue	Can reach environmental information physically held by another person on behalf of the authority	Certain service-provider records can be deemed held under FOI Act s.11(9)	The tests are different: avoid assuming consultant material is automatically accessible.
Preferred form	Applicant may specify form/manner, subject to rules and what is held	Act provides forms/manners of access	Ask for the form needed for analysis, not merely a printable copy.

Current procedural check. AIE internal review is free. OCEI's current standard appeal fee is €50 (€15 for a medical-card holder or dependent). Under FOI, the current general internal-review fee is €30 (€10 reduced) and most OIC reviews are €50 (€15 reduced), with important exceptions for personal-information and fee/deposit cases. Always verify current fees before filing. (AIE Regulations, arts. 7, 11-12; Freedom of Information Act 2014, ss. 13-14, 21-22, 27; OCEI, 2025c; Office of the Information Commissioner, 2025).

2.1 When splitting a request can be cleaner

If a project involves both environmental evidence and unrelated administrative material, consider two requests rather than forcing everything into one regime. Example: seek hydrological modelling, environmental alternatives and noise information under AIE; seek unrelated staffing or purely administrative records under FOI if they are not environmental information. A narrower legal theory often produces a clearer decision.

3. What counts as environmental information?

Article 3(1) of the AIE Regulations defines environmental information broadly across six categories. The presence of some environmental information in a record does not automatically make every part of that record environmental information (OCEI, 2026a).

Statutory category	Plain-language meaning	Typical requester examples
(a) Elements of the environment	State of air, water, soil, land, landscape, natural sites, wetlands, coastal/marine areas and biodiversity	Baseline ecology; river condition; groundwater; soil survey; habitat map; landscape assessment
(b) Factors affecting elements	Substances, energy, noise, radiation, waste, emissions, discharges and other releases	Noise modelling; road runoff; construction sediment; emissions; effluent; waste; light where environmentally relevant

Statutory category	Plain-language meaning	Typical requester examples
(c) Measures and activities	Policies, legislation, plans, programmes, agreements and activities affecting/protecting the environment	Route selection; planning options; mitigation; drainage design; restoration plan; forestry licence; traffic measure
(d) Implementation reports	Reports on implementation of environmental legislation	Compliance and implementation reporting; monitoring against environmental obligations
(e) Economic analysis and assumptions	Cost-benefit and other economic analysis/assumptions used within relevant measures/activities	Cost assumptions used to compare environmentally consequential options; appraisal assumptions
(f) Human health, life, cultural/built environment	Health/safety, conditions of life, cultural sites and built structures insofar as affected through environmental elements/factors/measures	Environmental effects on homes; heritage structures; cultural sites; human exposure to noise/air/flooding

3.1 Think in information forms, not just reports

Environmental information can be written, visual, aural, electronic or in another material form. Useful forms can include:

- searchable reports, appendices and draft sections;
- GIS layers, shapefiles, geodatabases, KML/KMZ, CAD and georeferenced PDFs;
- spreadsheets, databases, raw datasets and data dictionaries;
- model inputs, outputs, scenario files, calibration/validation information and assumptions;
- maps, drawings, photographs and aerial imagery;
- monitoring results, laboratory data, sampling locations, dates and quality-control information;
- emails, meeting notes, presentations and decision records insofar as they contain environmental information;
- metadata, methods, standard operating procedures and measurement/sampling procedures where relevant.

High-value technical point. For environmental-factor information, the Directive and Irish Regulations contemplate information on measurement procedures, including methods of analysis, sampling and pre-treatment, or reference to a standardised procedure. For researchers and citizen scientists, methods can be as important as the measurements themselves.

3.2 Ask for underlying information, not only a named document

A request framed only as 'Please provide the Constraints Report' can fail if no document with that exact title exists. A more robust formulation is: 'Please provide the Constraints Report and/or environmental information comprising, underlying or recording the constraints assessment.' This keeps the request focused on information already held without requiring the authority to create a new report.

4. Your role does not change the right; it changes what is useful

The following matrix is operational rather than legal. It helps a requester translate a role or concern into information categories and sensible next actions.

Requester role	High-value information to request	If obtained	If not obtained / unclear
Landowner	Route/footprint; permanent and temporary land take; drainage/flood; ecology; access/severance; noise/light; trees/heritage; mitigation	Map effects; brief solicitor/ecologist/engineer; make evidence-based consultation or acquisition/mitigation submissions	Preserve baseline; seek review if search/access issue remains; ask again when design matures; request direct engagement
Tenant / occupier	Access; noise; air; lighting; construction effects; flood/drainage; phasing	Assess living-condition impacts; engage landlord/authority; seek mitigation; make submission	Document unanswered effects; narrow follow-up; use unresolved points in consultation
Neighbouring resident	Traffic redistribution; noise/air; visual effects; flooding; construction traffic; cumulative effects	Move from general concern to quantified representation	Preserve unanswered impacts; seek focused data later; avoid assuming absence means no assessment
Farmer / land manager	Field severance; drainage; soil; watercourses; access; hedgerows; livestock routes; temporary works/restoration	Assess farm operability and environmental effects; obtain agricultural/engineering advice	Record what remains undocumented; seek later-stage land and drainage information
Business owner	Access; traffic change; construction effects; environmental/economic assumptions; phasing	Assess operational impacts; make submission; seek mitigation	Preserve unresolved impacts; ask for later design/traffic evidence
River / angling group	WFD; hydromorphology; fish passage; sediment; runoff; aquatic ecology; floodplain; water quality	Compare proposal with river objectives; identify mitigation; make technical submission	Seek pending/underlying studies; notify relevant bodies cautiously; preserve chronology

Requester role	High-value information to request	If obtained	If not obtained / unclear
Biodiversity group	Habitat/species surveys; corridors; fragmentation; lighting; mitigation; AA screening	Test ecological assumptions; identify survey-season issues; contribute observations	Clarify whether surveys are pending/held elsewhere/not yet created; preserve baseline
Heritage group	Archaeology; architectural heritage; historic landscape; cultural sites; setting/visual effects	Assess significance and setting; support heritage representations	Record what has not been documented; seek later assessment outputs
School / parent group	Traffic; air/noise exposure; construction routes; pedestrian/cycle effects; safety-related environmental info	Ask targeted questions about exposure, movement and mitigation	Preserve unresolved issues; use consultation and elected-representative routes
Community / campaign group	Alternatives; option comparison; environmental effects; traffic assumptions; decision trail; mitigation	Compare options; publish fact-based briefings; coordinate submissions	Coordinate complementary focused requests; avoid duplicative 'everything' requests
Researcher / citizen scientist	Raw data; GIS; metadata; methods; models; validation; monitoring plans/results	Reanalyse; reproduce; compare; publish responsibly; build provenance dataset	Treat non-holding/non-location as bounded result; consider review; repeat request later if project evolves
Journalist	Decision evidence; assessments; correspondence containing environmental info; assumptions; chronology	Verify claims; reconstruct timeline; attribute reporting precisely	Report authority's stated position, not unsupported conclusions; seek review where material
Councillor / public representative	Environmental evidence; alternatives; project status; decision basis; mitigation	Ask technically informed questions; scrutinise executive recommendations; represent constituents	Request clarity on evidence and timing; avoid substituting political inference for missing evidence

Role principle. Ask not only 'Can I request this?' but 'What would I be able to know, demonstrate, question or do next if I receive it - and what would a documented non-holding mean in my role?'

5. Build a focused AIE request

- 1. Identify the authority.** Send the request to the public authority you reasonably believe holds the information. Where a contractor or consultant may hold information on the authority's behalf, frame the request as information held 'by or for' the authority rather than assuming every consultant file is automatically within scope.
- 2. Define the environmental measure or place.** Name the project, licence, plan, site, waterbody, policy, discharge, habitat or environmental decision.
- 3. Define the period or project stage.** Use a date range or stage where it improves precision. In live projects, a dated request creates a useful cut-off for later provenance analysis.
- 4. Choose information modules.** Select only the categories needed to answer your question: baseline, alternatives, GIS, modelling, impacts, mitigation, monitoring, economics, decision trace, or methods.
- 5. Ask for information, not a new explanation.** AIE is for information already held by or for the authority. 'Please provide information recording the reasons for...' is generally safer than 'Please explain why...' if no recorded explanation exists.
- 6. Specify useful existing form.** Ask for searchable PDF, CSV/XLSX, native GIS, georeferenced PDF, model output or other existing electronic form where useful.
- 7. Invite partial/severed release.** Where some material is withheld, ask for separable environmental information to be released where possible.
- 8. Keep a clean record.** Save the exact sent text, attachments, sent timestamp and acknowledgement. This is the beginning of the evidential chronology.

5.1 Shared services, project offices and unclear legal identities

The name on a website or project logo is not always the legal identity of the AIE public authority. Environmental functions can be delivered through a local-authority shared service, programme office, inter-authority team, project unit or collaborative structure. A requester should not assume either that the branded service is automatically a separate public authority or that organisational complexity removes the information from AIE.

Where legal identity is unclear, identify the public authority or authorities that manage, control or legally host the service. Address the request to that authority and describe the information functionally, for example: 'environmental information held by or for [COUNCIL/DEPARTMENT], including information maintained within or on behalf of [SHARED SERVICE/PROGRAMME OFFICE].' If another public authority is the actual holder, Article 7(6) provides a transfer/referral route.

Situation	Safer requester approach
A shared service is jointly managed by named councils	Address one or both managing councils and include information held by or for the shared service.
A project office has its own branding but sits within a department/council	Use the parent public authority as the legal anchor; identify the project office in the scope.
A consultant manages the information repository	Ask the public authority to consider whether the environmental information is held for it; do not assume every consultant file is automatically covered.
You genuinely cannot tell who holds the information	Ask the most plausible public authority and request transfer/referral if another public authority is known to hold it.
Current Irish organisational example. The River Basin Management Service (formerly LAWPRO) describes itself as a Local Authority Shared Service working on behalf of all 31 local authorities and jointly managed by Tipperary and Kilkenny County Councils. The legally cautious requester need not first establish that the shared service is itself a separate AIE public authority: a request can be anchored to the managing council(s) and expressly include relevant environmental information held by or for them within the shared service (River Basin Management Service, 2026a, 2026b).	
Classification caution. The example above documents organisational structure, not a court or OCEI ruling that the River Basin Management Service has separate legal personality or is a distinct AIE public authority. Where status matters, anchor the request to an unquestionably covered public authority.	

5.2 A modular information menu

Module	Examples
Baseline / state	Water, ecology, habitat, soil, landscape, floodplain, air, noise baseline
Alternatives	Long list / short list; do-minimum; alternative locations/designs; public-transport or demand-management alternatives where relevant
Spatial information	Route geometry; footprints; buffers; constraints; environmental receptors; GIS attributes
Models and assumptions	Traffic/hydraulic/noise/air models; inputs; scenarios; calibration; validation; sensitivity analysis
Impacts	Ecology; hydrology; hydromorphology; flood; landscape; climate/carbon; cultural heritage; agriculture; human exposure
Mitigation and monitoring	Mitigation design; monitoring plans; thresholds; adaptive-management triggers; compliance reporting
Economics within environmental measures	Cost-benefit assumptions and economic analysis used within environmentally consequential measures
Decision trace	Environmental appraisal matrices; recorded recommendations; environmental information in minutes, presentations or decision registers
Methods / quality	Sampling methods; analytical methods; QA/QC; metadata; data dictionaries; uncertainty

5.3 A reusable request skeleton

Template. Under the European Communities (Access to Information on the Environment) Regulations 2007 to 2018, I request access in electronic form to environmental information held by or for [PUBLIC AUTHORITY] concerning [PROJECT / PLAN / PLACE / ACTIVITY]. The request covers [DATE RANGE / PROJECT STAGE]. Please provide: [FOCUSED LIST]. I prefer [FORMATS] where already held in those forms. If any information is withheld, please identify the applicable provision and reasons. If the information is not held by or for this authority but you are aware that another public authority holds it, please deal with the request in accordance with the applicable transfer/referral provisions.

6. Information held 'by or for' the authority

AIE expressly covers environmental information held by or for a public authority. 'Held for' matters where information is physically held by another natural or legal person on behalf of the authority. OCEI decisions emphasise the factual relationship and arrangements between the authority and third party; outsourcing storage cannot by itself defeat the access right, but a consultancy relationship does not make every consultant-held file automatically information held for the authority (OCEI, 2024a; OCEI, 2025a).

The 'held for' concept should not be used as a substitute for identifying the correct public authority. In shared-service or multi-agency arrangements, first identify the managing or hosting authority where possible; then use 'held by or for' to capture environmental information maintained on its behalf. The factual relationship, control and entitlement to the information remain important.

Question to ask	Why it matters
Who physically holds the information?	The authority, consultant, laboratory, contractor, regulated entity or another public authority may have different legal relationships to it.
Was the information created/maintained on behalf of the authority?	The 'held for' analysis depends on the factual arrangements and degree of control/entitlement.
Can the authority require or access it under the arrangement?	Control, entitlement and purpose can be relevant to whether it is effectively held for the authority.
Is it instead held by another public authority in its own right?	Transfer/referral may be more appropriate than a 'held for' argument.

Do not overclaim. Write: 'Please consider whether relevant environmental information is held for the authority by its consultants/service providers.' Avoid: 'Everything the consultant has is legally held by the Council.' The latter is not the test.

7. Decode the response precisely

Several responses that sound similar have different meanings. Do not collapse them into a single category called 'missing'.

Response	What it may mean	Possible next step
Granted / part-granted	Information was located and released, sometimes with redactions	Log provenance; analyse content; check whether key modules remain unanswered
Publicly available	Authority directs you to an accessible source	Check whether the public material is actually equivalent in content and format to what you requested
Not held	Authority says it does not possess information within scope	Ask whether information is held for it or by another authority if that is genuinely plausible
Could not be found / no further information	Search result rather than necessarily proof of non-existence	Assess adequacy of search explanation; consider internal review
Does not exist	Stronger proposition; may still need clarity about whether underlying information exists in another form	Ask whether this means no information exists at all, or only no record/document with that title
Not yet created / material unfinished	May be legitimate in a live process	Record date; ask again later if needed; consider whether an exception and required reasons were properly applied
Held by another authority	Current authority is not the holder	Seek transfer/referral or make a focused request to the other authority
Wrong / unavailable requested format	Information may exist but not in the requested form	Ask what existing form is held and whether it can be supplied
Not environmental information	Authority disputes AIE scope	Reassess the connection to one of the six statutory categories; consider FOI for genuinely non-environmental records
Exception applied	Information exists but access is refused on a statutory ground	Check reasons, restrictive interpretation/public-interest requirements where applicable, and review rights

Critical distinction. 'Not held', 'not located', 'does not exist', 'not yet created', 'held elsewhere' and 'publicly available' are not interchangeable. Preserve the authority's exact wording.

8. AIE as evidence traceability

This manual uses 'evidence traceability' as an analytical method, not a statutory term. The idea is simple: an AIE request can create a dated baseline of the authority's stated information position at the request/decision point. That baseline can later be compared with information located on review or created as a project develops.

Baseline rule. An initial AIE decision is a snapshot of the authority's stated information position after its first search. It is not automatically proof that the underlying assessment never happened, that no related information exists elsewhere, or that a project is unlawful.

8.1 Located later is not the same as created later

Situation	Interpretation
Information existed before the request and was released initially	Normal disclosure; analyse it.
Information existed before the request but was located only on internal review	The initial search may have been incomplete; preserve both decisions and provenance.
Information was created after the request date	Not normally within the original request's temporal scope; it may reflect legitimate project progression.
No information is held after adequately demonstrated searches	A stronger dated finding about the authority's holdings; still not a finding on the merits of the underlying project.
Information is held elsewhere / by a third party	Determine whether it is held for the authority or whether another public authority should be approached.

OCEI decisions treat the date of the original request as the relevant cut-off for whether information was held within the scope of that request; documents created afterwards may fall outside the original request and review (OCEI, 2021; OCEI, 2025b). OCEI also emphasises that it is not its role to determine what information a public authority should have held (OCEI, 2021).

8.2 Provenance log

Field	Record this
Request date	When the AIE baseline was created
Document / dataset	Title or concise description
Creator / source	Authority, consultant, laboratory, other body
Creation date	When the information was actually created
Version / status	Draft, final, revision number, dataset version
Date first disclosed	Initial decision, review, later request, proactive publication
Project / decision stage	What stage was live when it existed
Decision it purportedly informed	If stated in the material
Notes	Uncertainty, supersession, missing metadata, format limitations

9. The reflexive effect and the baseline-and-remediation paradox

This section introduces two analytical terms used by this manual. They describe strategic effects of access-to-information practice; they are not legal doctrines.

9.1 Possible reflexive effect

A well-framed request may cause an authority to search more carefully, organise consultant-held material, clarify document ownership, improve version control or document decisions more explicitly. Comparative transparency research shows that formal access mechanisms interact with organisational routines, responsiveness and institutional commitment to transparency; access requests can therefore reveal, and sometimes influence, administrative practice (Worthy et al., 2017; Tomkinson, 2024; Trautendorfer et al., 2025).

Requester caution. Improved public record management can be desirable for environmental governance. But a requester scrutinising or opposing a particular proposal is not obliged to become an unpaid quality-assurance consultant for the authority's substantive project case.

9.2 Baseline-and-remediation paradox

The first decision may already expose an evidential or search gap. Internal review can improve access by locating pre-existing information or explaining searches. At the same time, the review process can give the authority another opportunity to organise its material and improve its documentary position. This does not erase the original baseline. The correct response is to preserve each stage rather than overwrite it.

Chronology to preserve	Question
Original request	What exactly was asked, and when?
Initial decision	What did the authority say it held, located, released or refused at that time?
Internal-review request	What access defects were challenged without broadening the original scope?
Review decision	What changed? What was newly located, clarified or confirmed?
Later-created material	When was it created, and which later decision did it inform?

Practical rule. Ask for the evidence. Preserve the answer. Challenge an access failure where necessary. Do not automatically explain how the authority could repair the underlying substantive project.

10. Internal review: a right and a strategic choice

Under the AIE Regulations, a dissatisfied requester can seek internal review within one month. The review is a fresh reconsideration by a person unconnected with the original decision whose rank is the same as or higher than the original decision-maker; there is no internal-review fee, and the review decision is due within one month (AIE Regulations, art. 11).

Your priority	Usually sensible action	Strategic implication
I primarily need the information	Seek internal review promptly	You maximise the chance of further search, clarification or release.
The initial absence/search result is itself an important baseline	Preserve the initial decision first; decide whether more disclosure is worth review	Do not lose the historical wording even if later information appears.
I need both the information and the baseline	Seek review, but maintain a separate provenance chronology	This is often the best balance.
The response is credible and already answers the access question	Stop or make a later fresh request when the project stage changes	Do not escalate automatically.
Further engagement would mainly teach the authority how to strengthen its substantive project case	Separate the access issue from the substantive dispute; escalate only if a real AIE issue remains	A requester may strategically limit process-improvement guidance.

Important legal consequence. Internal review is normally a prerequisite to an OCEI appeal. If you deliberately do not seek internal review, OCEI may be unable to accept a later appeal on that decision and you may have to restart with a new request. Strategy therefore includes a real trade-off, not a cost-free choice.

10.1 Keep internal review within the original scope

Internal review is not an opportunity to convert a focused request into an open-ended investigation. OCEI decisions stress that issues raised on review should be clear, concise and confined to the environmental information originally requested (OCEI, 2024b). Where the issue is search adequacy, ask what locations, systems, responsible teams and relevant third-party holdings were considered, without demanding an indefinite forensic trawl.

10.2 What counts as a reasonable search?

Where an authority effectively refuses under Article 7(5) because no further information is held or found, OCEI assesses whether reasonable and adequate steps were taken to identify and locate the information. OCEI does not generally require absolute certainty or indefinite searching; a documented, credible search methodology can be sufficient (OCEI, 2026b).

11. OCEI appeal: what it can and cannot do

The Commissioner for Environmental Information independently reviews public-authority decisions on requests for environmental information. OCEI can affirm, vary or annul an internal-review decision and, where appropriate, require environmental information to be made available. It does not decide the substantive merits of the underlying development, policy or environmental project.

Accessible and effective review mechanisms are a central part of the Aarhus framework: they allow uncertainty over procedural environmental rights to be tested and standards to develop over time (Ryall, 2019).

OCEI can examine	OCEI is not the forum for
Whether information is environmental information; whether an exception was properly relied upon; whether adequate searches were made; whether information is held by or for the authority; procedural compliance with the AIE regime	Whether a bypass, quarry, wind farm, forestry operation, flood scheme or other project should proceed; whether a public authority should have created an assessment; compensation/property disputes; general merits of environmental policy

Current OCEI guidance states that an appeal normally follows an internal review and must generally be made within one month of receiving the internal-review decision, or the date by which it should have issued. The current standard fee is €50, reduced to €15 for a medical-card holder or dependent (OCEI, 2025c).

Decision rule. Appeal because a specific unresolved AIE access issue remains - not merely because you dislike the underlying project or because you want an external body to 'raise an eyebrow'.

12. What can you do with information - or with its absence?

The usefulness of AIE depends on the requester's practical role and the forum in which the evidence can be used. Access to information is one part of the Aarhus architecture; its value increases when information supports informed participation and, where relevant, later review or justice mechanisms (Mason, 2010; Abbot & Lee, 2024).

12.1 If information is obtained

Understand. Replace rumour with the actual baseline, model, map, assumption or assessment.

Participate. Use evidence to make a more precise consultation submission or representation.

Analyse. Map GIS, test assumptions, reanalyse datasets, compare scenarios, or commission specialist review.

Compare through time. Check whether evidence pre-dated or post-dated key decisions and whether versions changed.

Coordinate. Share bounded findings with community groups, landowners or professional advisers without disclosing unnecessary personal information.

Escalate in the correct forum. Where evidence reveals a material issue, use it in the relevant planning, regulatory, political, academic or legal process. AIE itself is not that process.

12.2 If information is not obtained

Search appears inadequate. Consider internal review, focusing on the access defect and original scope.

Information may be held for the authority. Ask the reviewer to address the factual third-party arrangement rather than asserting automatic consultant coverage.

Another public authority holds it. Seek transfer/referral or make a targeted request there.

Information genuinely did not exist at the request date. Preserve that bounded finding; decide whether a later request is useful when the project matures.

Information is created later. Record its creation date and ask which decision it actually informed.

Information is lawfully withheld. Assess whether review is worthwhile on the stated legal ground and public-interest reasoning, where applicable.

Preferred format is unavailable. Ask what existing form is actually held and whether it preserves the analytical value you need.

12.3 The evidence ladder

Level	What you can responsibly say
1. Authority position	'The authority stated that...'
2. Documentary fact	'The released document dated X records...'

Level	What you can responsibly say
3. Reproducible analysis	'Using the released dataset/method, the analysis shows...'
4. Supported inference	'This suggests..., subject to...'
5. Professional/legal conclusion	Only where appropriately qualified evidence and advice support it

Interpretive discipline. Do not turn 'not found' into 'never assessed'; do not turn a draft into a final decision; do not turn correlation into motive. Separate fact, authority position, analysis, inference and unresolved question.

13. Sharing and publishing responsibly

Access and republication are different questions. Before posting released material publicly, consider personal data, sensitive ecological information, confidentiality context and copyright. The Data Protection Commission provides practical guidance on redacting documents and records, and Irish copyright law protects third-party material even where access has been granted (Data Protection Commission, n.d.; Department of Enterprise, Tourism and Employment, n.d.).

Publish/share	Safer practice
Authority statements	Attribute precisely and date them.
Personal data	Remove names, phone numbers, addresses and domestic details unless genuinely necessary and lawful.
Sensitive species information	Avoid publicising precise nest, den, roost or vulnerable-species locations where disclosure could cause harm.
Third-party documents	Summarise and cite rather than republishing wholesale unless reuse rights are clear.
Uncertain conclusions	Label as inference or unresolved question.
Live disputes	Keep a private evidence dossier more detailed than the public paper.

14. Composite scenarios: from request to action

The examples below are hypothetical composites. They are not descriptions of any particular authority or project.

14.1 Landowner affected by a proposed transport corridor

Question: What permanent/temporary footprint, flood, drainage, ecological, tree, heritage and construction-access information exists for my land?

Useful request: property/corridor geometry; hydrology/flood information; ecology/tree/heritage constraints; temporary works; drainage/runoff; mitigation.

If released: overlay the information with the property; brief relevant professionals; make a specific consultation submission.

If not held/found: preserve the dated response; decide whether search adequacy warrants review; ask again at a later design stage if the material legitimately did not yet exist.

14.2 River or angling group examining a crossing

Question: What evidence addresses WFD status, hydromorphology, fish passage, sediment, runoff, floodplain connection and construction risk?

Useful request: baseline river information; crossing concepts; hydromorphological assessment; aquatic ecology; drainage treatment; construction sediment controls; monitoring.

If released: compare assumptions with river objectives and local observations; provide evidence-based comments.

If absent: ask whether studies are pending, held elsewhere or not yet created; do not state that no assessment occurred unless the evidence actually establishes that.

14.3 Researcher or citizen scientist evaluating monitoring

Question: Can the published conclusions be reproduced?

Useful request: raw data; sampling sites/dates; analytical methods; QA/QC; data dictionary; excluded observations; model code/outputs where held; uncertainty.

If released: reproduce analysis, document methods and publish responsibly.

If absent: distinguish unavailable raw data from unpublished methods and from material never created; record the consequence for reproducibility without implying misconduct.

14.4 Community group or journalist tracing a decision

Question: What environmental information informed the narrowing from several alternatives to a preferred option?

Useful request: environmental appraisal matrices; alternatives information; recorded recommendations; environmental information in meeting records; modelling assumptions; mitigation trade-offs.

If released: reconstruct the decision chronology and attribute claims to the record.

If some material appears only on review: log when it was created and whether it existed before the original request; report the chronology rather than alleging concealment without evidence.

15. One-page field checklist

- ☐ Define the environmental question before drafting.
- ☐ Identify the most likely public authority.
- ☐ Choose AIE, FOI, or separate focused requests under both.
- ☐ State that the request is made under the AIE Regulations 2007 to 2018.
- ☐ Give contact details and specify the environmental information as precisely as possible.
- ☐ Limit by place, period, project stage and information module.
- ☐ Ask for information underlying a process, not only a named report title.
- ☐ Request useful existing forms: searchable PDF, data, GIS, metadata, methods.
- ☐ Ask for environmental information held 'by or for' the authority where third-party holding is genuinely relevant.
- ☐ Save the exact sent request and timestamp.
- ☐ Calendar the initial decision deadline.
- ☐ Classify the response precisely: released / public / not held / not found / no such record / unfinished / elsewhere / refused.
- ☐ Preserve the initial decision before requesting internal review.
- ☐ If reviewing, remain within the original scope and identify the specific access defect.
- ☐ Remember: internal review is normally needed before OCEI appeal.
- ☐ Log creation date, version, source, disclosure date and decision stage for every useful item.
- ☐ Separate fact, authority position, analysis, inference and unresolved question.
- ☐ Use the result in the forum appropriate to your role; do not expect AIE itself to determine the underlying project.
- ☐ Before publishing, redact unnecessary personal data and check copyright/sensitive ecology.
- ☐ For a live evolving project, consider a fresh later AIE request rather than trying to stretch the original request beyond its date.

16. Digital implementation blueprint

The manual is intentionally modular so it can be implemented later as a static GitHub Pages decision-support tool without a backend. The digital tool should not duplicate the Department or OCEI request instructions. Its value should be the requester-side reasoning layer: role and goal selection, information-category design, response decoding, baseline/provenance logging, review trade-offs and role-to-action guidance.

Website module	Manual logic
Role selector	Choose landowner, tenant, resident, farmer, river group, researcher, journalist, councillor, etc.
AIE / FOI selector	Guide by information substance and requester goal.
Information-category picker	Six statutory AIE categories + practical modules.
Request builder	Generate a focused, editable request; never force an 'everything' request.
Response decoder	Classify public / released / not held / not found / unfinished / elsewhere / exception / format issue.
Baseline & provenance log	Record request date, decisions, document creation/version/disclosure dates.

Website module	Manual logic
Review decision tree	Explain internal-review trade-offs and OCEI prerequisite.
Role-to-action output	Show what obtained/absent information can support for that requester role.
Reference panel	Link to current official law/guidance and version/date the legal rules used by the demo.

Design principle. The future website should help users reason about their information need. It should not auto-generate aggressive legal claims or imply that absence of a record proves a defective underlying project.

17. Methodological note and limitations

The manual combines primary legal/administrative sources, earlier Irish requester guidance and comparative academic literature. The legal claims are grounded in Irish legislation, EU law and current Irish official guidance/decisions. TASC and Noteworthy are acknowledged as practical predecessors rather than treated as current legal authority. Peer-reviewed studies contextualise transparency, participation, organisational responsiveness and strategic use of access rights; they are not substitutes for Irish legal authority.

The evidence-traceability model, reflexive effect, baseline-and-remediation paradox and role-to-action framework are author-generated analytical tools. Their contribution is not a new legal right or a claim that existing AIE guidance is unavailable. The contribution is the requester-side synthesis: connecting a legal information-access process to provenance, timing, review strategy and role-specific environmental action. These concepts should be tested and refined through future case studies.

AIE law and institutional practice evolve. Future versions should update procedural details and preserve version history. Where a live matter could materially affect property rights, statutory consent, litigation or significant financial interests, professional legal or technical advice may be appropriate.

Appendix A. AIE and better environmental decisions: documented pathways and examples

Directive 2003/4/EC is explicitly designed to promote increased public access to environmental information and more effective public participation. The Court of Justice has stated that the objective is to contribute to better decisions, more effective implementation and, ultimately, a better environment (Friends of the Irish Environment Ltd v Commissioner for Environmental Information, Case C-470/19, EU:C:2021:271, para. 36).

Causal caution. It is rarely possible to prove from an AIE decision alone that disclosure changed the final substantive outcome of a project or policy. The examples below show something narrower and more defensible: AIE strengthened, or could have strengthened, the conditions for better decision-making by improving timeliness, scrutiny, evidence access, technical understanding or accountability. A different final decision is not the only measure of a better decision process.

A.1 Irish research context

EPA-funded research on environmental democracy in Ireland examined 36 case studies, including 17 access-to-information cases. It found that the legal framework could have only limited effect where implementation effort was weak, and treated access to information, participation and access to justice as interdependent conditions of environmental decision-making (Ewing et al., 2011). This provides an important backdrop for the cases below: having an AIE right matters, but timing and implementation determine whether the information can actually influence participation.

A.2 National Planning Framework consultation submissions (2025)

A requester sought electronic copies of all public and public-sector submissions made on the review of the National Planning Framework (NPF). The Department refused access while the NPF revision remained ongoing, relying on the exception for material in the course of completion. OCEI concluded that the 272 submissions were complete, separate pieces of information rather than unfinished material, and directed their release subject to limited redaction of personal details (OCEI, 2025d).

Decision-making value: the disclosure route made the evidence and arguments contributed by other participants available for public scrutiny while the national planning framework was still under revision. That supports comparison, challenge and informed debate before final approval. The OCEI decision does not establish that release changed the final NPF; it establishes that ongoing decision-making did not, by itself, justify withholding completed consultation submissions.

A.3 Greenwire strategic infrastructure pre-application file (2018)

A requester sought a digital copy of An Bord Pleanála's pre-application consultation file for the proposed Greenwire strategic infrastructure project. The Board refused while the pre-application process was still live. OCEI found the requested material to be environmental information, concluded that the refusal was not justified on the grounds relied upon, and required release subject to limited exclusions and redactions (OCEI, 2018).

Decision-making value: OCEI expressly noted that access to environmental information is broader than the formal planning-participation rules and that limited third-party participation in the pre-planning process does not preclude broader participation in environmental decision-making. The case therefore demonstrates how AIE can open environmentally relevant information at an earlier stage than the ordinary planning file would otherwise become public.

A.4 EirGrid technical layout information (2017)

A requester sought current single-line diagrams showing the layout of substations forming part of the Laois-Kilkenny Reinforcement Project. EirGrid refused on the basis that the diagrams were not environmental information. OCEI annulled that decision and expected the request to be processed under the AIE Regulations (OCEI, 2017).

Decision-making value: recognising technical design information as environmental information can allow affected people and specialists to understand the physical configuration of infrastructure rather than participate only at the level of general descriptions. The published OCEI decision does not document a changed project decision, so the responsible claim is that AIE widened access to evidence capable of supporting more informed scrutiny.

A.5 Fingal strategic-housing pre-planning maps: why timing matters (2021)

A requester sought location maps for pre-planning consultations concerning proposed or potential Strategic Housing Developments. Fingal County Council initially refused access; the information was later supplied during the OCEI process. The Commissioner nevertheless proceeded to decide the appeal and found the original refusal unjustified. Crucially, OCEI recorded that by the time the information was made available it was no longer valuable for the requester's purpose of engaging in environmental decision-making (OCEI, 2021a).

Decision-making value: this is a negative comparator. Access that arrives after the relevant opportunity to participate may satisfy disclosure too late to improve the decision process. Timeliness is therefore part of the substantive usefulness of AIE, not merely an administrative convenience.

A.6 What 'better decisions' should mean in this manual

Dimension	What AIE can improve
Evidence-informed	Decision-makers and participants can work from actual data, assumptions, maps, methods and submissions rather than rumour.
Contestable	Claims and assumptions can be checked, challenged and independently analysed.
Timely	Information is available while a meaningful participation or review opportunity still exists.
Traceable	The evidence available at each stage can be distinguished from material created or located later.
Accountable	Authorities can be asked to explain the information basis for environmental decisions and how competing evidence was treated.

AIE success should therefore not be measured only by whether the requester 'wins' the underlying dispute. A decision can remain unchanged yet be better because it is more informed, transparent, reasoned and capable of scrutiny. Conversely, disclosure after the meaningful decision window can be legally significant but practically weak.

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Reference notes

OCEI decisions and CJEU judgments are cited as legal/administrative authorities on AIE interpretation and procedure; they are not treated as peer-reviewed scholarship. Department, OCEI and UNECE guidance provide the principal official reference layer. TASC and Noteworthy are cited as earlier Irish requester-facing guidance and practical predecessors, not as current legal authority. Academic publications are cited for transparency, participation and public-administration analysis. The River Basin Management Service example is cited only to document its current organisational description and managing councils, not as a legal determination of separate AIE status.